Avensong 2026 Amenity Access Packet

December 01, 2025

Dear Avensong Community Homeowners:

Your access to the gated amenities will be turned off January 16, 2026, unless you have submitted the 2026 Amenity Access Packet and have made at least the minimum amount of the required 2026 HOA assessment payments.

Please read the following information, complete the attached forms, and submit the entire packet as instructed. Unless you complete this process for 2026 your amenity card will not be activated.

Once your packet is received, your HOA account(s) will be checked for eligibility. If you have not voted on the Covenant Amendment you will be asked to do so. You can find a copy of the proposed Amendment at www.avensong.org/ownerinfo. The passing of this Amendment is critical to the future well-being of Avensong.

IMPORTANT: If you want access to the pool for Memorial Day weekend, you must submit the packet and have your homeowner account(s) in good standing ***BEFORE Friday, May 1, 2026***. Due to the summer rush backlog, packets received after this date and/or delinquent accounts are not guaranteed pool access in time for the holiday weekend.

You can submit your completed access packet in any of the following ways:

- Option 1: Email
  Scan, assemble and email the required pages in a SINGLE email to amenities@avensong.org.
  - ✓ Please ensure PDF scans are legible – illegible files will not be processed.
  - ✓ If emailing pictures, keep image file sizes around 1M each so they can be read for review and processing (illegible image files will be rejected).
  - ✓ Please send all pages/images in ONE email – nobody can sort through emails to find and assemble your access packet for you.
  - ✓ DO NOT SEND A LINK TO YOUR DOCUMENT. Avensong does not accept/access external links.

- Option 2: mail (USPS)
  If you cannot fax or email your packet, you can mail it to Avensong Community c/o Homeside Properties, Inc., 900 North Point Pkwy, Suite 325, Alpharetta, GA 30005.
  DO NOT BRING PACKETS TO HPI OFFICES - HPI DOES NOT ACCEPT IN-PERSON DROP-OFFS.

If you have questions about this, please email amenities@avensong.org. We are happy to assist everyone during this process and hope we all have an enjoyable and safe 2026!

Thank you,
The Avensong HOA Board of Directors

2026 Amenity Access Packet Checklist

Please read and initial items on this page carefully. If you initial in the wrong place, or do not include a required document, your amenity card activation will be delayed.

Please make sure you have completed and have included these required 4 documents listed here with your packet submission:

1. This checklist (this to help you make sure you do everything correctly)
   Homeowner Initials _____

2. The 2026 Census (even if you did it in 2025).
   Homeowner Initials _____

3. The 2026 COVID/Infectious Disease Waiver has been signed by resident homeowners or tenants who will be using the amenities (This has two pages with blanks that need to be completed).
   Homeowner Initials _____

4. The 2026 Avensong Amenity Rules, Use & Agreement, signed by homeowners and if leasing your home, your tenants, who will be using the amenities.
   Homeowner Initials _____

In addition to the documents listed above, it is the responsibility of all homeowners to confirm the following items.

If you are unsure of what any of the items below are, please email amenities@avensong.org before submitting your access packet. Incorrectly initialing any of the following items will result in the delay of your amenity card activation.

- I (owner) have created and checked *all* my CINC and Town Square accounts and my accounts are all in good standing (no balances due and no open violations).
  - Homeowner Initials _____

- Village and Avencroft owners must complete and initial this statement (does not apply to Carriage homeowners):

  I own a home in the Village or Avencroft section of Avensong and have *also* created the additional required online account portals for this property.
  - Homeowner Initials _____

- I am an investor and have a current confirmation email stating I have complied with all Avensong's Leasing Rules for this property and will provide it upon request.
  - Investor Initials _____

2026 Avensong Homeowner/Resident Census for Amenity Access in 2026

Dear Avensong Homeowners –

1) All homeowners wanting amenity access in 2026 must fill out the top section of this form.
2) Investors/Landlords – must also have your tenants fill out and sign the bottom section of this form.

Please print legibly.

Homeowners:

Property Address: _____

Homeowner Name: _____

Emergency Contact Phone Number: _____

Your contact E-mail address: _____

I have registered at www.avensong.org and created all the required HOA accounts** for my property. _____ (homeowner initials).

**If you are not sure what accounts need to be created, please email hoa@avensong.org for help.

Tenants:

If you are a tenant renting your Avensong home, please complete the information below. Make sure your landlord has completed the section above.

Tenant Name: _____

Emergency Contact Phone Number: _____

Your contact E-mail address: _____

Date current lease expires: _____

I have registered at www.avensong.org _____ (tenant initials)

We appreciate your cooperation. We hope that by updating and confirming our records, we will be better able to serve all the owners and residents of Avensong.

2026 Avensong COVID/Infectious Disease Waiver

Any person entering the premises waives all civil liability against this premises owner and operator for any injuries caused by the inherent risk associated with contracting COVID-19, or other infectious disease at public gatherings, except for gross negligence, willful and wanton misconduct, reckless infliction of harm, or intentional infliction of harm, by the individual or entity of the premises.

WAIVER AND RELEASE OF LIABILITY, ASSUMPTION OF RISK AND INDEMNITY AGREEMENT

BY SIGNING THIS DOCUMENT YOU WILL WAIVE CERTAIN LEGAL RIGHS, INCLUDING THE RIGHT TO SUE AVENSONG COMMUNITY ASSOCIATION, INC.

Investors DO NOT SIGN THIS – it is for people using the amenities only. Residents fill in and sign ALL Yellow Highlighted items.

This WAIVER AND RLEASE OF LIABILITY AND ASSUMPTION OF RISK AND INDEMNITY AGREEMENT (the "Agreement"), is made and entered as of the _____ day of _____, 20____ ("Effective Date"), by and between Avensong Community Association, Inc. ("the "Association") and _____"Releasor" (the resident owner or tenant using amenities).

Definitions

Any term not defined herein shall have the meaning ascribed to it in the Declaration of Protective Covenants for Avensong recorded on August 14, 1995, in Deed Book 19602, Page 282, *et seq.* in the Fulton County, Georgia land records (the "Declaration"). Additionally, the following terms are defined for purposes of this Agreement:

1. "Gathering" shall mean more than fifty (50) persons (or such number of persons set forth in an Executive Order issued by the Governor of the State of Georgia then in effect" physically present in a Single Location if, to be present, persons are required to stand or be seated within six (6) feet of any other person.
2. "Single Location" shall mean a space where all persons gathered cannot maintain at least six (6) feet of distance between themselves and any other person.
3. "Social Distancing" shall mean keeping space between yourself and other people outside of your home or place of residence. Persons practicing Social Distancing should stay at least six (6) feet from other people, avoid assembling in groups, avoid large, crowded places, and avoid large crowds. The provision shall not apply to cohabitating persons, family units, or roommates residing together in private homes, whether inside or outside of their homes or place of residence.

2026 Avensong COVID/Infectious Disease Waiver

Additional Rules and Regulations

The following Rules and Regulations have been adopted by the Board of Directors of the Association pertaining to the use of the Common Property, including the recreational facilities located thereon. The following Rules and Regulations are in addition to any restrictions contained in the Declaration, Association's Bylaws or rules and regulations ("Association Legal Documents"). Any conflict between the following Rules and Regulations and the terms of the Association Legal Documents, the following Rules and Regulations shall control. The Releasor agrees to comply with the following Rules and Regulations and the terms of the Association Legal Documents and agrees to ensure all minor children that accompany him/her to the Common Property comply with the following Rules and Regulations and the terms of the Association Legal Documents.

1. Individuals who have a fever or other symptoms of COIVD-19, or other infectious disease, shall not enter the common Property, including the recreations facilities located thereon. Symptoms of COVID_19, or other infectious diseases include, but are not limited to, a fever, cough, shortness of breath or difficulty breathing, chills muscle pain, sore throat or new loss of taste or smell.
2. All individuals utilizing the Common Property shall do so at their own risk, being aware that any areas/surfaces that such individual comes into contact with are not disinfected after each use. Individuals are welcome to disinfect areas/surfaces before and after use if they wish.
3. All individuals are encouraged to regularly wash their hands while at the Common Property. Residents with active amenity cards can access the resident bathrooms (under the clubhouse deck).
4. Unnecessary person-to-person contact is discouraged.
5. All persons who do not practice Social Distancing of non-cohabitating persons while present on the Common Property do so at their own risk.
6. All individuals touching fencing, doors/gates, ladders, trash containers and other equipment and objects while utilizing the Common Property do so at their own risk. It is recommended that all individuals should use hand sanitizer and/or wash their hands after touching any of these items.
7. Violation of these Rules and Regulations shall be reported immediately to the Association.
8. No individual 18 years of age or older shall be permitted to enter the Common Property until such individual has executed this Agreement and delivered same to the Association. No individual under the age of 18 shall be permitted to enter the Common Property until the parent or guardian of such individual has executed this Agreement end delivered same to the Association.
9. **USE OF THE COMMON PROPERTY IS AT YOUR OWN RISK, INCLUDING THE RISK OF EXPOSURE TO CORONAVIRUS, SARS-COV-2, COVID-19, OR OTHER INFECTIOUS DIESEASES AND ILLNESSES.**

Violation Of these Rules and Regulations shall result in the imposition of fines and suspension of use privileges in accordance with the terms of the Association Legal Documents.

2026 Avensong COVID/Infectious Disease Waiver

ACKNOWLEGLEMENT OF AND ASSUMPTION OF RISK

Releasor, on behalf of himself/herself and any minor child/children that accompany him/her to the Common Property, acknowledges and agrees that by entering, utilizing and occupying the Common Property, they may come into contact with SARS-CoV-2, COVID-19, and/or other infectious diseases and persons who have contracted SARS-CoV-2, COVID-19, and/or other infectious diseases. Releasor, on behalf of himself/herself and any minor child/children that accompany him/her to the Common property, further acknowledges and agrees that by entering, utilizing and occupant the Common Property, they may contract SARS-CoV-2, COVID-19, and other infectious diseases, which are known to cause respiratory distress, pneumonia, shortness of breath and death. Releasor, on behalf of himself/herself and any minor child/children that accompany him/her to the Common Property, also acknowledges and agrees that the Association owes no duty to any person to prevent such person from contracting SARS-CoV-2, COVID-19, and other infectious diseases, nor does the Association owe any person any duty to prevent such person from coming into contact with other persons infected with SARS-CoV-2, COVID-19, and other infectious diseases. By entering, utilizing and occupying the Common Property, all persons do so at their own sole volition and risk having full knowledge of the risks inherent in entering, utilizing and occupying the Common Property.

RELASE OF LIABILITY

By execution of this Agreement, Releasor agrees and covenants to release, on behalf of themselves, their predecessors, successors, affiliates, assigns and any minor child/children that accompany Releasor on the Common Property, and their past, present and future attorneys, agents, employees, managers, representatives, assigns, and successors in interest, and all persons acting by, though, under, or in concert with them, and their partners, attorneys, agents, employees, managers, representatives, assigns and successors in interest, and all persons acting by, though, under, or in concert with them, and each of the, from all known and unknown charges, complaints, claims, grievances, liability, obligations, promises, agreements, controversies, damages, actions, causes of action, suits, rights, demands, costs, losses, debts, penalties, fees, wages, medical costs, pain and suffering, mental anguish, emotional distress, expenses (including attorneys' fees and costs actually incurred), and punitive damages, known or unknown, which Releasor has, or may have had, against Association whether or not apparent or yet to be discovered, or which may hereafter develop, for any acts or omissions related to arising from the use of the Common Property as it pertains to SARS-CoV-2, COVID-19, and/or other infectious diseases, and any and all purported damages arising therefrom.

INDEMNIFICATION AND HOLD HARMLESS

By execution of this Agreement, Releasor, on behalf of themselves, their predecessors, successors, affiliates, assigns, and any minor child/children that accompany Releasor on the Common Property, agrees to Indemnify and Hold Harmless the Association, its directors, officers, employees and agents from any and all claims, actions, suits, procedures, costs, expenses, damages and liability, including attorney's fees, brought by anyone on my behalf, any of my guests, household members, invitees or any third party as a result of my or their entry upon and/or use of the Common Property.

2026 Avensong COVID/Infectious Disease Waiver

SEVERABILITY

By execution of the Agreement, Releasor, on behalf of themselves, their predecessors, successors, affiliates, assigns, and any minor child/children that accompany Releasor on the Common Property, agrees that this Agreement is intended to be as broad and inclusive as is permitted by the laws of the State of Georgia and that if any portion of it is held invalid, it is agreed that the balance shall, notwithstanding, continue in full legal force and effect.

AGREEMENT OF UNDERSTANDING

I have read this Agreement, fully understand its terms, and understand that I am giving up substantial rights, including my right to sue. I acknowledge that I am signing this Agreement freely and voluntarily and intend by my signature to be a complete and unconditional release of all liability to the greatest extent allowed by law. I further understand that this agreement shall be effective and binding upon my heirs, next of kin, executors, administrators and assigns, in the event of my death.

IN WITNESS WHEREOF, the Releasor is executing this Agreement on the date first set forth above on behalf of himself/herself and any minor child/children that accompany him/her to the Common Property. (Remember to enter the date on P1 of this waiver.)

(Residents using the amenities must complete and sign below. Investors – DO NOT SIGN BELOW)

RELEASOR:

_____
Signature

_____
Print Name

_____
Avensong Address

_____
Date

ADDITIONAL RESIDENTS AND MINOR CHILDREN:

_____
Print Name

_____
Print Name

_____
Print Name

_____
Print Name

2026 Avensong Amenity Rules, Use and Agreement

The following rules apply to all Avensong residents and their guests.
(These rules are also posted at www.avensong.org/docs)
All Avensong homeowner accounts must be in good standing (no balances, no violations) for amenity access.
Common areas and gated amenities are for Avensong residents and their guests to enjoy.
Avensong residents are responsible for their guests.
Anyone violating these rules will be asked to leave and may be subject to fines.
All amenity users agree to abide by any amenity rule updates, or use instructions, issued by email throughout the year.
If your amenity card does not work, please contact amenities@avensong.org.

Un-fenced Common Areas (playground, open spaces)

- No offensive language or disruptive/offensive behavior will be tolerated.
- No loud music – please keep the music at a level that does not disturb others.
- You may not use the amenities for personal or for-profit business.
- No smoking in/on/around the play structure or the area marked by the playground timbers. Please use the cigarette waste receptacle when done smoking. Do not throw lit cigarettes in the trash cans or landscaped areas.
- No alcoholic beverages in/on/around the play structure or the area of the playground timbers. Drinking alcoholic beverages in public is subject to the laws of the City of Milton.
- Please dispose of all trash in the trash cans around the common areas. Littering is subject to automatic fines.
- No overnight parking in the clubhouse parking lot without prior HOA approval.
- Questions about the amenities can be emailed to amenities@avensong.org.

Clubhouse Rental
Please visit the "Clubhouse Rental" page on the www.avensong.org website for full information regarding the rental of the clubhouse for a personal event.

The clubhouse (and deck) may be rented for personal events by resident homeowners or tenants only (off-site investors are not permitted amenity access).

- ❖ NOTE: The homeowner is responsible for any damage to the clubhouse or other common areas as a result of the clubhouse rental agreement made under their property address.

- The clubhouse rental includes the clubhouse and use of the deck only.
  - Gated amenities (tennis courts, basketball court and pool) are not included. Clubhouse rental guests who use the gated amenities during an event will forfeit the entirety of their clubhouse rental deposit.
  - The playground and other common areas are not included in the rental and are "public "use" spaces. Clubhouse renters may not restrict access to these areas to anyone during their rental or will forfeit the entirety of their clubhouse rental deposit.
- The clubhouse rental application and all deposits must be received before anyone will be given access to the clubhouse.
- All rules for the clubhouse must be adhered to. Please note that additional fines/penalties may be assessed if the clubhouse and deck are not returned in the same or better condition than received.
- All fines will be assessed to the homeowner account listed on the Clubhouse Rental Agreement.

2026 Avensong Amenity Rules, Use and Agreement

Gated Amenities (pool, tennis courts, basketball court, bathrooms)

- While using the gated amenities, upon request you may be asked to demonstrate your amenity card works at a gate or you will be asked to leave.
- Pedestrian gates, tennis court gates, basketball court gate, the pool gate and bathroom doors must NOT to be propped open or climbed on.
- Active cardholders who allow non-cardholders into the fenced amenities are responsible for the non-cardholder's behavior.

Gated amenity violations are issued per calendar year.

These penalties are subject to variation depending on the severity of the violation.

- First violation = deactivation of all amenity cards for 2 weeks
- Second violation = $50 fine and deactivation of all amenity cards for 4 weeks
- Third violation = $100 fine and deactivation of all amenity cards for the remainder of the calendar year

Tennis & Pickleball Courts

The tennis courts are for the use and enjoyment of Avensong residents and their guests from 6:30am until 9pm daily.

- Users are required to check "Reserve My Court" and must vacate immediately if a court is reserved in the app.
- If not reserved, the courts are available on a first come/first-serve basis.
- Residents and their guests may occupy up to two (2) courts at a time. In the event other residents are waiting to use a guest-occupied court, the court must be vacated at the end of the current game (not set or match).
- You may not use the courts for personal or for-profit business. Private lessons are permitted for members of the same household on a single court only. Group lessons are not permitted.
- Tennis court gates are not to be propped open. If your amenity card does not work, you must contact amenities@avensong.org to find out why.
- No smoking inside the tennis courts.
- No glass containers inside the tennis court gates.
- No loud music inside the tennis courts.
- Animals are not allowed inside the tennis court fenced area at any time.
- "Ride-on" toys (bikes, skateboards, scooters, skates, etc.) are not permitted on the courts at any time.
- Tennis court nets and fencing are not to be climbed on.
- Children under 12 must be accompanied by an adult over the age of 18.

Basketball Court

The basketball court is for the use and enjoyment of Avensong residents and their guests from 6:30am until 9pm daily.

- The court is available on a first come/first-serve basis.
- You may not use the court for personal or for-profit business.
- The basketball court gate is not to be propped open. If your amenity card does not work, you must contact amenities@avensong.org to find out why.
- No smoking inside the basketball court.
- No glass containers inside the basketball court
- No loud music is allowed in/around the basketball court.
- Animals are not allowed inside the basketball court fenced area at any time.
- "Ride-on" toys (bikes, skateboards, scooters, skates, etc.) are not permitted on the court.
- Basketball court fencing must not be climbed on.

2026 Avensong Amenity Rules, Use and Agreement

Pool

The Avensong Pool is for residents of Avensong and their guests only.
Everyone at the pool is responsible for keeping the pool fun and safe for all Avensong residents.
Anyone violating these rules will be asked to leave and is subject to card deactivation and fines.
The pool company employees have the full authority of the Avensong HOA Board of Directors to act on all violations.

The following pool rules apply to all Avensong residents and their guests.

- NOTE: There is NO lifeguard on duty. Swim at your own risk!
- The pool will be open to Avensong RESIDENTS with valid amenity cards only. Current year pool hours are posted by the pool gate. 2026 daily operating hours are 6:300AM until 8:00PM.
- The pool will be closed to bathers for 30 minutes at the direction of the gate attendant for maintenance and cleaning. Any resident that does not leave the pool when asked by the gate attendant will be subject to fines and loss of pool access.
- You must have your valid amenity card to use the pool. If your amenity card does not work, you must contact amenities@avensong.org to find out why.
- Bathers without a valid amenity card will be considered trespassing and the police may be called.
- Do not open the gate for people without an active amenity card (there's a reason they don't have one).
- Jumping over/climbing on the fence to access the pool is not permitted.
- Residents may not share their cards with other residents (there's a reason they don't have one).
- Residents of Avensong are not permitted to be "guests" of another resident.
- Residents with a valid amenity card may bring up to (4) non-resident guests, of any age to the pool area.
- No parties at the pool (remember, only 4 guests per card).
- You may not use the pool for personal or for-profit business.
- Private swimming lessons are permitted for members of the same household. Instructors must enter and leave the pool area with you. The instructor may not conduct group lessons using the Avensong pool.
- Pedestrian gates, the pool gate and bathroom doors must NOT to be propped open.
- Proper swim attire is required. Children who are not fully toilet trained must use swim diapers.
- Children under 12 must be accompanied by an adult over the age of 18.
- Do not put pool furniture (chairs, umbrellas, tables) in the pool.
- No offensive language or disruptive/offensive behavior will be tolerated.
- No smoking inside any of the gated areas.
- No alcoholic beverages inside any of the gated areas.
- No skateboards, bikes, roller blades or other "ride-on" toys are allowed in the fenced pool area.
- No running or "rough-house" play is allowed in the fenced pool area.
- No glass containers inside the fenced pool area.
- No pets/animals inside the fenced pool area.
- No loud music – please keep the music at a level that does not disturb others or use headphones.
- "Pool toys" only – no footballs, baseballs, Frisbees or other hard toys allowed inside the fenced pool area.

2026 Avensong Amenity Card Rules, Use and Agreement

All residents who want their amenity card activated for 2026 must complete and sign below.

If you need to order a new amenity card, please email amenities@avensong.org.

Homeowners please sign and date here.

I, (homeowner print name) _____, am the homeowner of (print street address) _____.

I have read and agree to abide by the "2026 Avensong Amenity Use and Rules".

I understand that using the amenities is voluntary and I, or anyone using my amenity card, do hereby release the Avensong HOA, the Avensong HOA Board of Directors and/or its agents from any liability for harm or damage that may occur to us, or our property, due to our choice to use the amenities.

Homeowner signature: _____

Date: _____

Tenants please sign and date here. Remember your landlord must complete the top portion of this form.

I, (tenant print name) _____, am living at (print street address) _____.

I have read and agree to abide by the "2026 Avensong Amenity Use and Rules".

I understand that using the amenities is voluntary and I, or anyone using my amenity card, do hereby release the Avensong HOA, the Avensong HOA Board of Directors and/or its agents from any liability for harm or damage that may occur to us, or our property, due to our choice to use the amenities.

Tenant signature: _____

Date: _____